

**SUBSTITUTE FOR
HOUSE BILL NO. 5044**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1178b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1178b. (1) Subject to subsection (2), by not later than**
2 **July 1, 2027, the board of a school district or intermediate school**
3 **district or board of directors of a public school academy shall**
4 **develop and adopt a policy that allows a student who is enrolled in**
5 **the school district, intermediate school district, or public school**
6 **academy and who has a prescription, recommendation, or order from a**
7 **private health care specialist for medically necessary applied**
8 **behavior analysis services to receive the services when the student**
9 **is in a school setting in compliance with other applicable state**



1 laws and federal laws, including, but not limited to, the specified
2 federal statutes. The policy must address how a student described
3 in this subsection receives medically necessary applied behavior
4 analysis services when the student is in a school setting in
5 compliance with other applicable state laws and federal laws,
6 including, but not limited to, the specified federal statutes. Each
7 school operated by a school district, an intermediate school
8 district, or a public school academy shall immediately implement
9 the policy that is developed and adopted by the board of the school
10 district or intermediate school district or board of directors of
11 the public school academy under this subsection.

12 (2) The policy described in subsection (1) must, at a minimum,
13 do at least all of the following:

14 (a) Include a requirement that the parent or legal guardian of
15 each student enrolled in the school district, intermediate school
16 district, or public school academy receive a notice that states
17 that the specified federal statutes provide rights and protections
18 to students to access medically necessary applied behavior analysis
19 services required by the student for the student to have meaningful
20 access to the benefits of a public education or to attend school
21 without risks to the student's health or safety due to the
22 student's disabling medical condition.

23 (b) Address the process through which a private health care
24 specialist may do any of the following as required under the
25 specified federal statutes:

26 (i) Observe the student in the school setting.

27 (ii) Collaborate with instructional personnel and other school
28 personnel as necessary to ensure the student receives medically
29 necessary applied behavior analysis services in the school setting.



1 (iii) Provide medically necessary applied behavior analysis
2 services in the school setting.

3 (c) Include a requirement that the parent or legal guardian of
4 each student enrolled in the school district, intermediate school
5 district, or public school academy receive a notice informing the
6 parent or legal guardian of any right under state law or federal
7 law to appeal the decision of the board of the school district or
8 intermediate school district or board of directors of the public
9 school academy concerning access to medically necessary applied
10 behavior analysis services in the school setting.

11 (d) Include a requirement that when a student or the student's
12 parent or legal guardian requests that the student receive access
13 to medically necessary applied behavior analysis services in the
14 school setting, school personnel designated by the principal or
15 other chief administrator of the student's school must meet with
16 the student, the student's parent or legal guardian, and any
17 representatives or health care personnel designated by the student
18 or the student's parent or legal guardian not later than 30 days
19 after submission of the request to determine how and when the
20 requested medically necessary applied behavior analysis services
21 will be accommodated. The student's school must allow the requested
22 medically necessary applied behavior analysis services to be
23 provided unless it would impose a fundamental alteration or an
24 undue burden on the school under the specified federal statutes.

25 (3) The board of a school district or intermediate school
26 district or board of directors of a public school academy shall
27 make the policy described in subsection (1) publicly available on
28 its website and shall, on request, make the policy available to
29 each parent or legal guardian of a student who is enrolled in the



1 school district, intermediate school district, or public school
2 academy.

3 (4) Subject to the family educational rights and privacy act
4 of 1974, 20 USC 1232g, and the health insurance portability and
5 accountability act of 1996, Public Law 104-191, by not later than
6 July 1, 2028, and by not later than July 1 of each year thereafter,
7 the board of a school district or intermediate school district or
8 board of directors of a public school academy shall compile and
9 provide to the department the total number of requests for
10 medically necessary applied behavior analysis services in the
11 school setting resulting from a policy described in subsection (1)
12 and whether each request was approved or denied and, if denied, the
13 rationale for the denial.

14 (5) Subject to the family educational rights and privacy act
15 of 1974, 20 USC 1232g, and the health insurance portability and
16 accountability act of 1996, Public Law 104-191, by not later than
17 January 1, 2029, and by not later than January 1 of each year
18 thereafter, the department shall make the information it receives
19 under subsection (4) available on the department's website and
20 shall report the information to the house and senate standing
21 committees on education.

22 (6) As used in this section:

23 (a) "Medically necessary applied behavior analysis services"
24 means evidence-based therapeutic interventions, prescribed by a
25 private health care specialist and delivered according to an
26 individualized treatment plan based on a comprehensive behavioral
27 assessment, that are required to treat autism, to reduce
28 maladaptive behaviors, and to develop, maintain, or restore
29 functional skills, the absence of which substantially interfere



1 with a student's ability to successfully access the educational
2 environment. Medically necessary applied behavior analysis services
3 are not provided for custodial, educational, or recreational
4 purposes alone, but are intended to address clinically significant
5 needs of the individual.

6 (b) "Private health care specialist" means a behavior analyst,
7 an assistant behavior analyst, or a behavior technician as those
8 terms are defined in section 18251 of the public health code, 1978
9 PA 368, MCL 333.18251. Private health care specialist does not
10 include school paraprofessionals or any individual employed by or
11 contracted with a school district, intermediate school district, or
12 public school.

13 (c) "Specified federal statutes" means the following
14 provisions of federal law:

15 (i) Section 504 of title V of the rehabilitation act of 1973,
16 29 USC 794.

17 (ii) The Americans with disabilities act of 1990, Public Law
18 101-336.